

24VECV06435 24VECV06435

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Tentative Ruling

Ogbueze v. Healthy Life Services,

Case no. 24VECV06435

Hearing date September 1, 2026

Defendant

LA Best Hospice Care's Demurrer with Motion to Strike the FAC

Plaintiff

D. Ogbueze, personal representative of the estate of decedent E. Ogbueze, sues defendants Healthy Life Service, Inc., Joy Hospice Care, Inc. and LA Best Hospice Care for elder abuse, negligence and wrongful death. Plaintiff alleges that while decedent was under defendants' care, she suffered neglect and negligent care, resulting in her death. LA Best Hospice Care ("LABHC") demurs to the first amended complaint and moves to strike punitive damages and enhanced remedies under Welf. & Inst. §15657(a). Plaintiff opposes.

Defendant LA Best Hospice Care's Demurrer to the FAC

"The

function of a demurrer is to test the sufficiency of the complaint as a matter of law." Holiday Matinee, Inc. v. Rambus, Inc. (2004) 118 Cal.App.4th 1413, 1420. A complaint "is sufficient if it alleges ultimate rather than evidentiary facts." Doe v. City of Los Angeles (2007) 42 Cal.4th 531, 550, but plaintiff must allege essential facts "with reasonable precision and with particularity sufficient to acquaint [the] defendant with the nature,

source and extent” of the plaintiff’s claim. *Doheny Park Terrace Homeowners Ass’n., Inc. v. Truck Ins. Exchange* (2005) 132 Cal.App.4th 1076, 1099.

LABHC

demurs to the cause of action for neglect under the Elder Abuse and Dependent Adult Civil Protection Act (the “Act”) and negligence cause of action as time barred. “In an action for injury or death against a health care provider based upon such person’s alleged professional negligence, the time for the commencement of action shall be three years after the date of injury or one year after the plaintiff discovers, or through the use of reasonable diligence should have discovered, the injury, whichever occurs first.” Code Civ. Proc. §340.5. “Within two years: 1. An action for assault, battery, or injury to, or for the death of, an individual caused by the wrongful act or neglect of another.” Code Civ. Proc. §335.1.

The

complaint was filed 12/23/24, and LABHC was added by amendment 1/5/26. See 12/23/24 Compl.; see also 1/5/26 FAC. LABHC argues any negligence or neglect claim against it accrued no later than 1/1/24. See FAC, paras. 12, 75-98.

Plaintiff

argues the complaint named Does 1-100, and the 1/5/26 amendment relates back to the filing of the original complaint. 12/23/24 Compl. Plaintiff learned of LABHC’s alleged liability shortly before amending the complaint. See Decl. Gordon, para. 5. Plaintiff amended to name LABHC, alleging the same operative facts and recovery as in the initial complaint. *Id.* at para. 6, exh. C. Where a complaint “sets forth, or attempts to set forth, a cause of action against a defendant designated by fictitious name and his true name is thereafter discovered and substituted by amendment, he is considered a party to the action from its commencement so that the statute of limitations stops running as of the date of the earlier pleading,” so long as “recovery is sought in both pleadings on the same general set of facts.” *Austin v. Massachusetts Bonding & Ins. Co.* (1961) 56 Cal. 2d 596, 599, 600. The first and second causes of action are not time-barred as to LABHC.

LABHC

separately demurs to the first cause for neglect under the Act for failing to state a claim for heightened remedies. The Act provides for enhanced remedies (attorney’s fees and costs) if plaintiff proves “by clear and convincing

evidence" that the "defendant is liable for . . . neglect as defined in Section 15610.57," "guilty of recklessness, oppression, fraud, or malice in the commission of this abuse," and the plaintiff has satisfied "[t]he standards set forth in subdivision (b) of Section 3294 of the Civil Code regarding the imposition of punitive damages on an employer based upon the acts of an employee." Welf. & Inst. Code §15657(c). These remedies are "in addition to all other remedies otherwise provided by law." *Id.* There is no basis to sustain a demurrer for failing to prove recklessness, oppression, fraud, or malice; this is properly the subject of the attached motion to strike. *Aubry v. Tri-City Hosp. Dist.* (1992) 2 Cal. 4th 962, 967.

LABHC

also demurs to the first cause for neglect under the Act as failing to state sufficient facts. To state a claim, plaintiff must allege "negligent failure of any person having the care or custody of an elder or a dependent adult to exercise that degree of care that a reasonable person in a like position would exercise." Welf. & Inst. Code §15610.57(a)(1). Inherent in this is the care or custody requirement, "a relationship where a certain party has assumed a significant measure of responsibility for attending to one or more of an elder's basic needs that an able-bodied and fully competent adult would ordinarily be capable of managing without assistance." *Winn v. Pioneer Med. Grp., Inc.* (2016) 63 Cal.4th 148, 158. The Act provides examples of conduct that constitutes neglect, including "[f]ailure to assist in personal hygiene, or in the provision of food, clothing, or shelter," "[f]ailure to provide medical care for physical and mental health needs," "[f]ailure to protect from health and safety hazards," and "[f]ailure to prevent malnutrition or dehydration." Welf. & Inst. Code §15610.57(b)(1)-(4).

Plaintiff

sufficiently alleges the care or custody element. See FAC, paras. 117-123. Plaintiff alleges LABHC withheld care necessary to meet decedent's needs by failing to turn and reposition her to prevent pressure ulcers from developing or worsening, to feed her and to treat and monitor her wounds. *Id.* at paras. 47, 79-80, 85, 89, 92-93. Plaintiff alleges decedent's Braden Risk Chart rating, her inability to care for herself and LABHC's knowledge of said risk and inability. *Id.*, paras. 89-90, 92. These are sufficient allegations to survive demurrer. *Covenant Care, Inc. v. Superior Court* (2004) 32 Cal.4th 771, 790. OVERRULED.

LABHC

demurs to the negligence/willful misconduct claim as failing to state sufficient facts, argues the claim is duplicative of allegations in the first and third causes of action and fails to allege facts sufficient to establish duty, breach, causation or willful misconduct specifically attributable to LABHC. *Ladd v. County of San Mateo* (1996) 12 Cal.4th 913, 917. LABHC fails to argue the elements of willful misconduct; the demurrer is disregarded as to those elements.

As

an initial matter, redundancy “is not a ground on which a demurrer may be sustained.” *Blickman Turkus, LP v. MF Downtown Sunnyvale, LLC* (2008) 162 Cal. App. 4th 858, 890. Further, plaintiff alleges LABHC owed a duty of care to decedent as her joint care custodian. FAC, paras. 75-76. Plaintiff alleges duty required LABHC to provide basic care services to decedent, protect her from health and safety hazards and have sufficient trained staff to care for her. *Id.* paras 71, 73, 76, 137. Plaintiff alleges LABHC breached that duty in failing to turn and reposition decedent, treat and monitor wounds, care for toileting needs and provide proper nutrition and hydration. *Id.*, paras. 47, 79-80, 85, 89, 92-93. Plaintiff alleges as a result of LABHC’s breaches, decedent developed a pressure wound and died 5/12/24. *Id.*, paras. 63, 148. The second cause of action is adequately alleged. OVERRULED.

LABHC

demurs to the cause of action for wrongful death as failing to state sufficient facts. The “elements of the cause of action for wrongful death are [1] the tort (negligence or other wrongful act), [2] the resulting death, and [3] the damages, consisting of the pecuniary loss suffered by the heirs.” *Lattimore v. Dickey* (2015) 239 Cal. App. 4th 959, 968, quoting *Quiroz v. Seventh Ave. Ctr.* (2006) 140 Cal. App. 4th 1256, 1263.

Plaintiff

sufficiently alleged the torts of elder neglect and negligence/willful misconduct. Plaintiff alleges decedent died 5/12/24. FAC, para. 63. Plaintiff alleges “[p]rior to the death of [decedent], her sole son and heir, [plaintiff], [i]ndividually, enjoyed the love, society, comfort, and attention she provided to him.” *Id.* at para. 154. This is sufficient to survive demurrer. OVERRULED.

Defendant LA Best Hospice Care’ Motion to Strike the
FAC

LABHC

moves to strike paragraphs 31, 134 and 149, and prayers 3 and 4 as to LABHC.

LABHC argues plaintiff failed to allege facts sufficient to sustain prayers for punitive damages and enhanced remedies under the Act.

To

be entitled to enhanced remedies under the Act, plaintiff must prove “by clear and convincing evidence that a defendant is liable for physical abuse . . . and that the defendant has been guilty of recklessness, oppression, fraud, or malice in the commission of this abuse.” Welf. & Inst. Code §15657.

Similarly,

punitive damages require plaintiff to prove “oppression, fraud, or malice.” Civ. Code §3294(a). In an elder or dependent adult abuse case, “oppression, fraud, [and] malice” require the plaintiff to plead that the defendant “denied or withheld goods or services necessary to meet the elder or dependent adult’s basic needs . . . with knowledge that injury was substantially certain to befall the elder or dependent adult.” *Carter v. Prime Healthcare Paradise Valley LLC* (2011) 198 Cal.App.4th 396, 406-407. Recklessness involves a lesser showing of “a subjective state of culpability greater than simple negligence, which has been described as a ‘deliberate disregard’ of the ‘high degree of probability’ that an injury will occur.” *Id.*

Plaintiff

alleges LABHC knew decedent was substantially certain to suffer injury if decedent was not properly turned, fed and cared for by LABHC and its employees. See FAC, paras. 78, 81, 94. Plaintiff alleges LABHC withheld necessary care despite its knowledge of decedent’s risk level and needs. *Id.* at paras. 79, 84-85, 89. Plaintiff alleges LABHC knew it was “unable to meet [decedent]’s needs due to a lack of competent staff in sufficient numbers,” and that the subject facility “was not capable of meeting [decedent]’s needs given that it was a non-medical facility.” *Id.* at para. 97. These allegations are sufficient to show deliberate disregard for the high degree of probability that an injury would occur. *Carter*, *supra*. Plaintiff sufficiently alleged recklessness for purpose of enhanced remedies (Welf. & Inst. §15657) and punitive damages (Civ. Code §3294(a)).

LABHC

argues plaintiff failed to allege ratification for purposes of punitive damages.

“An employer shall not be liable for damages pursuant to subdivision (a), based upon acts of an employee of the employer, unless the employer had advance knowledge of the unfitness of the employee and employed him or her with a conscious disregard of the rights or safety of others or authorized or ratified the wrongful conduct for which the damages are awarded or was personally guilty of oppression, fraud, or malice.” Civ. Code §3294(b).

Plaintiff

alleges LABHC “was the owner, operator, licensee, parent company, supervisor, director, officer, and managing agent of a hospice agency, its employees and its agents,” and it “ratified, authorized, directed and/or controlled the conduct of the hospice nurses, agents and employees, through employment, implementation of policies and procedures, training and supervision at the facility.” FAC, para. 11. This is insufficient. Plaintiff fails to allege which managerial agent(s) of LABHC ratified the alleged recklessness. Plaintiff offers no legal authority for the argument that a corporate entity can serve as its own ratifying agent for purposes of punitive damages.

LABHC

argues plaintiff’s request for punitive damages should also be struck for failure to comply with Code Civ. Proc. §425.13. Per section 425.13, a court order is required prior to requesting punitive damages in an “action for damages arising out of the professional negligence of a health care provider.” *Id.* Plaintiff fails to allege compliance with section 425.13, nor did the court issue such an order. LABHC cites *Central Pathology Service Medical Clinic, Inc. v. Superior Court* (1992) 3 Cal.4th 181, 186 for the premise that section 425.13 applies not only to medical negligence but also negligence claims against professional service providers.

Plaintiff

argues compliance with Code Civ. Proc. §425.13 is not required, as the gravamen of the claims arise from elder abuse. Plaintiff cites *Covenant Care, Inc. v. Superior Court* (2004) 32 Cal.4th 771, 788 at 790 for the premise that “[w]here the gravamen of an action is violation of the Elder Abuse and Dependent Adult Civil Protection Act, Central Pathology’s rationale for applying section 425.13 to the common law intentional torts at issue in that case does not obtain.” Under *Covenant Care*, *supra* a court order was not required.

Plaintiff

sufficiently alleged recklessness for enhanced remedies under Welf. & Inst. §15657 and punitive damages under Civ. Code §3294(a) but failed to allege corporate ratification for purposes of punitive damages.

GRANTED

in part. Paragraph 31, page 7, as it relates to LABHC, is struck. Paragraph 149, page 36 and 37, as it relates to LABHC, is struck. Prayer for relief, page 38, no. 4, as it relates to LABHC, is struck. If plaintiff discovers evidence supporting ratification, plaintiff may move to amend to plead punitive damages.